



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

February 19, 2010

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 14891
(SECOND REVISION)

EXPIRATION DATE: April 30, 2010

1. GRANTEE: The Boeing Company
Huntington Beach, CA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-way transportation in commerce of the X-51 Vehicle Cruiser and Interstage Assembly containing certain Division 1.4 explosives, internal combustion engines and lithium batteries contained in equipment by exclusive use motor vehicle. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56 in that the X-51 Vehicle Cruiser and Interstage Assembly do not have an EX classification, and §§ 173.62, 173.220 and 173.185 in that alternative packaging is authorized.

February 19, 2010

5. BASIS: This special permit is based on the application of The Boeing Company dated October 7, 2009, submitted in accordance with § 107.105 and the public proceeding thereon and additional information dated February 17, 2010.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Articles, explosive, n.o.s.	1.4B	UN0350	II
Engines, internal combustion, flammable liquid powered	9	UN3166	N/A
Lithium batteries, contained in equipment	9	UN3091	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The X-51 Vehicle is comprised of a Cruiser (Cruiser) and an Interstage Assembly (Assembly). The X-51 Vehicle Cruiser and Interstage Assembly must be prepared for transportation in accordance with drawings on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

(1) The X-51 Vehicle Cruiser and Interstage Assembly must each be secured to a specially designed welded aluminum mounting fixture approximately 15 feet long by 6 feet wide by 5 feet high with locking caster for mobility. The secured X-51 Vehicle Cruiser and Interstage Assemblies and mounting fixtures are then secured inside a metal Conex shipping container. The Conex container is then placed on a 40 foot trailer.

(2) The Cruiser contains:

(i) Explosives: six detonating fuzes and two electric detonators. The explosive devices are integrated within the mechanical structure of the vehicle. They are protected by metal hardware (shorting plugs) which

February 19, 2010

prevent accidental or premature detonation. The total explosive weight may not exceed 3.3 grams for shipment.

(ii) Batteries: two thermal batteries (non-regulated) and one lithium battery are integrated within the mechanical structure of the vehicle. They are connected and active, however they will see no load drawn since the hardware they power is turned off.

(iii) Engine: The engine contains residual amounts of jet fuel (Class 3).

(3) The Assembly contains:

(i) Explosives: two detonating fuzes. The explosive devices are integrated within the mechanical structure of the vehicle. They are protected by metal hardware (shorting plugs) which prevent accidental or premature detonation. The total explosive weight may not exceed 2.75 grams for shipment.

(4) The X-51 Vehicle Cruiser and Interstage Assembly are classed as Articles, explosive, n.o.s., 1.4B, UN0350, II.

b. OPERATIONAL CONTROLS -

(1) Transportation of the X-51 Vehicle Cruiser and Interstage Assembly must be by private or contract carrier under exclusive use of the Boeing Company. The shipment must be accompanied by trained personnel and appropriate emergency equipment.

(2) One-way transportation is authorized from Palmdale, CA to Edwards Air Force Base in California.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

February 19, 2010

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - The outer shipping container must be plainly and durably marked "DOT-SP 14891" as specified in § 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term

February 19, 2010

"exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LaValle/sln